

23STCV21662 23STCV21662

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-06-26

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Case Number: 23STCV21662 Hearing Date: June 26, 2026 Dept: 400

Tentative

Rulings on Motions in Limine in Mendoza v. Ford 23STCV21662

PLAINTIFF'S MIL #1

Seeks to preclude evidence re settlement discussions.

TENTATIVE RULING:

GRANTED. There shall be no

mention of settlement discussions absent prior approval obtained from the Court.

PLAINTIFF'S MIL #2: Seeks

to preclude evidence that Defendant proposed arbitration as an alternative to this litigation

TENTATIVE RULING: GRANTED. The availability of a certified arbitration program is a defense to any claim for civil penalties based simply on a violation of the law. CC section 1794(e).

Plaintiffs do not seek civil

penalties under that provision, but rather under CC section 1794(c), which requires a showing of willfulness. The

arbitration program is not relevant to that provision. To the extent the parties are concerned that there may be references to the arbitration program in documents admitted into evidence, the Court will consider a proposed instruction to the jury not to consider whether an arbitration program was available.

PLAINTIFF'S MIL #3: Seeks

to preclude evidence relating to attorney's fees incurred by counsel in this

case.

TENTATIVE RULING:

DENIED WITHOUT PREJUDICE. The

Court will give CACI instruction 3964, requested by both parties, that instructs jurors not to consider attorneys fees in their deliberations and verdict.

PLAINTIFF'S MIL #4:

Seeks to preclude evidence relating to Plaintiff's financing or financial condition.

TENTATIVE RULING: GRANTED Plaintiff's financial condition or his terms of financing are not relevant to the claims in this case. To the extent there may be an incidental reference in admitted evidence to the terms of purchase or Plaintiff's credit application, the Court will consider an instruction that those issues are not relevant to the deliberations or verdict.

PLAINTIFF'S MIL #5 Seeking order prohibiting reference to attorney advertisements and marketing.

TENTATIVE RULING:

GRANTED. These matters are not

relevant to any claim or defense, they might be prejudicial, and they will be excluded under Evidence Code section 352. All counsel and parties will be introduced to prospective jurors who will be asked by the Court if they have any knowledge of the parties or counsel, and, if so, how they came to learn of them. If further inquiry is warranted, that may occur outside the presence of the other prospective jurors.

PLAINTIFF'S MIL #6

Seeks to preclude argument that timely revocation of acceptance was required.

TENTATIVE RULING:

DENIED This issue appears to

relate to the implied warranty of merchantability, which is not at issue in this case following the Court's summary adjudication of this issue on May 6, 2025.

PLAINTIFF'S MIL #7

Seeks an order that statements by dealers are admissions of the

manufacturer.

TENTATIVE RULING:

DENIED WITHOUT PREJUDICE These

issues are much better addressed on a case by case basis, and will require foundational proof of the relationship between the dealer and the manufacturer.

PLAINTIFF'S MIL #8:

Seeks to preclude evidence of Ford's 998 offer to compromise.

TENTATIVE RULING:

GRANTED The 998 offer to

compromise is not admissible to prove liability. If it becomes relevant because Ps argue that Ford ignored them, the Court will consider whether this evidence might be proper in response.

DEFENDANT'S MIL #1:

Seeks to preclude evidence of P's "subjective expectations" about the vehicle.

TENTATIVE RULING:

GRANT. The standard as to

whether the value of the vehicle was "substantially impaired" is an objective one, such that unique expectations the P may have had are not relevant. That said, testimony about the intended uses of the vehicle could be relevant to whether its value was substantially impaired due to a defect. The objective standard is to be applied to the specific circumstances of the buyer. *Lundy v. Ford Motor Co.* (2001) 87 Cal App 4th 472, 478.

DEFENDANT'S MIL#2

Seeks to preclude evidence of non-recoverable damages

TENTATIVE RULING:

GRANT, but the parties are ordered to meet and confer and develop a list

of those incidental damages which are recoverable and those which are not. The list must be presented to the Court at the time of jury selection.

DEFENDANT'S MIL #3:

Seeks to preclude references to the dealer as Ford's agent.

TENTATIVE RULING:

DENIED While it appears that the dealership does act as agent of the manufacturer for some purposes, it is also clear they are not agents for other purposes.

The Court cannot determine whether certain activities are done on an agency basis until evidence is proffered as to (1) the nature of the agency relationship and (2) specific evidence that P wants admitted on that basis. See Civil Code sections 2296 et seq. as it relates to agency.

DEFENDANT'S MIL #4

Seeks to preclude evidence of customer repair requests not covered by warranty

TENTATIVE RULING:

GRANT The relevant requests which are covered by warranty is what would constitute a potential breach, not those which are not.

DEFENDANTS MIL #5

Seeks to preclude evidence of repair requests presented only once.

TENTATIVE RULING: DENY

WITHOUT PREJUDICE While it is true that Defendant must be given a reasonable opportunity to repair and that means at least two chances, this ruling may be hard to enforce without addressing specifics because there may be a dispute about whether a particular repair request is related to one or more other requests.

DEFENDANT'S MIL #6

Seeks to preclude argument that Ford has a duty to repurchase the car without first receiving the customers request to do so.

TENTATIVE RULING:

DENIED This appears to misstate the law as the duty arises upon material violation of the warranty.

DEFENDANT'S MIL #7 Precludes

questioning of Ford's employees of the legal requirements of Song Beverly.

TENTATIVE RULING: GRANT Asking lay witnesses about legal requirements is irrelevant and unfair. The employees may be asked what they did, but not be examined on legal issues.

DEFENDANT'S MIL #8

Would limit Plaintiff to one expert witness.

TENTATIVE RULING:

DENIED The Court will sustain objections where evidence is unreasonably cumulative, but not rule in advance that only one expert may testify. In any event, Plaintiff states they will use only one expert at trial.

DEFENDANT'S MIL #9

Seeks to preclude Plaintiff's expert from testifying because he was not made available for deposition.

TENTATIVE RULING:

ARGUE

DEFENDANT'S MIL #10:

Seeks to preclude evidence of technical service bulletins which do not relate to the vehicle at issue.

TENTATIVE RULING:

GRANT It is not apparent to the Court that evidence of issues with parts which were not defective in Ps vehicle is relevant to prove breach of warranty.

DEFENDANT'S MIL #11:

Seeks to preclude evidence of complaints by other customers concerning vehicles other than the subject vehicle.

TENTATIVE RULING:

DENIED WITHOUT PREJUDICE Complaints about other vehicles of the same model and year could be relevant to issues such as Ford's knowledge of a problem. They are not necessarily hearsay as they may be in business records and/or relevant to Ford's state of mind. Ford may reserve all rights to object when such evidence is offered.